

## 20STCV10085 20STCV10085

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-09-10

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Case Number: 20STCV10085 Hearing Date: September 10, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

MICHAEL F WRIGHT

, et al.;

Plaintiffs,

vs.

GEORGE W. CARROLL

, et al.;

Defendants.

Case

No.:

20STCV10085

Hearing

Date:

September  
10, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

(1)

defendant

george w. carroll's motion to compel plaintiff michael f. wright's responses  
to form interrogatories, set one and request for sanctions

(2)

defendant's

motion to compel deposition of plaintiff priscilla H. wright and request for  
sanctions

MOVING PARTY: (1) & (2) Defendant George

W. Carroll

RESPONDING PARTY: (1) Plaintiff Michael F. Wright; (2) Plaintiff Priscilla H.

Wright

(1)

Motion

to Compel Plaintiff Michael F. Wright's Responses to Form Interrogatories, Set  
One

(2)

Motion

to Compel Deposition of Plaintiff Priscilla H. Wright

The court

considered the moving, opposition, and reply papers filed in connection with these  
motions

## BACKGROUND

On May 6, 2026, defendant George W. Carroll ("Defendant") withdrew his motion to compel plaintiff Michael F. Wright's responses to Form Interrogatories, Set One. On May 14, 2026, Defendant withdrew his motion to compel plaintiff Priscilla H. Wright's deposition. However, on May 29, 2026, at the request of plaintiffs Michael F. Wright and Priscilla H. Wright, the court ordered the motions restored for the limited purpose of ruling on plaintiffs' requests for monetary sanctions made in their oppositions.

## MOTION TO COMPEL PLAINTIFF MICHAEL F. WRIGHT'S RESPONSES TO FORM INTERROGATORIES, SET ONE

### Plaintiff

Michael F. Wright ("M. Wright") requests Defendant and his attorneys, Salisian Lee LLP, to pay sanctions of \$5,162.50 to M. Wright.

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."  
(Code Civ. Proc., § 2030.290, subd. (c).)

### The

court finds that sanctions are not warranted because M. Wright's argument that Defendant violated the law by filing this motion after M. Wright sought a protective order is without merit.

### M. Wright argues that Defendant

did not withdraw the motion earlier when the court previously continued a motion to deem matters admitted until after the protective order was heard. However, this is also not a basis for sanctions.

### M. Wright also argues he

served responses to form interrogatories and Defendant did not withdraw the

motion. However, a moving party is not required to withdraw their motion to compel responses once responses are served.

The court denies M. Wright's request for monetary sanctions because the court finds that the circumstances presented make the imposition of sanctions unjust.

MOTION TO COMPEL DEPOSITION OF PLAINTIFF  
PRISCILLA H. WRIGHT

Plaintiff Priscilla H. Wright ("P. Wright") requests Defendant and his attorneys, Salisian Lee LLP, to pay sanctions in the amount of \$5,705.50.

A party must obtain an order to depose a person in a location that is neither (1) within 75 miles of the deponent's residence, nor (2) within the county where the action is pending and within 150 miles of the deponent's residence. (Code Civ. Proc., § 2025.260., subd. (a); Code Civ. Proc., § 2025.250., subd. (a).) Defendant's amended notice of deposition required P. Wright to appear for deposition in person in Los Angeles and merely states that Defendant "reserves the right... to record the testimony by audio and/or video technology," without an order from the court to appear. (Mateescu Decl., Exh. Q.) The court finds that Defendant's amended deposition notice (without an order from the court) was invalid because P. Wright's residence is in Mississippi. (P. Wright Decl., ¶ 2.)

The court therefore grants P. Wright's request for monetary sanctions against Defendant pursuant to Code of Civil Procedure sections 2023.010, subdivisions (b) and (h), and 2023.030, subdivision (a). The court finds that \$2,080.00 (3 hours x attorney Rick Augustini's \$685 hourly rate = \$2,055 attorney's fees + \$25 e-filing fee) is a reasonable amount of sanctions to impose against Defendant for the attorney's fees and costs plaintiff P. Wright has incurred in opposing this motion.

ORDER

The court denies plaintiff Michael

F. Wright's request for monetary sanctions.

The court grants plaintiff Priscilla

H. Wright's request for monetary sanctions.

The court orders defendant George W.

Carroll to pay monetary sanctions to plaintiff Priscilla H. Wright in the amount of \$2,080.00 within 30 days of the date of service of this order.

The

court orders plaintiff Priscilla H. Wright to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 10, 2026

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Robert B. Broadbelt III

Judge of the Superior Court